

Amendment No. 2 to HB0533

Bulso
Signature of Sponsor

AMEND Senate Bill No. 449*

House Bill No. 533

by deleting all language after the enacting clause and substituting:

SECTION 1. This act is known and may be cited as the "Fertility Treatment and Contraceptive Protection Act."

SECTION 2. Tennessee Code Annotated, Title 63, Chapter 1, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Contraception" means an action taken to prevent pregnancy, including the use of contraceptives, emergency contraceptives, fertility awareness-based methods, and sterilization procedures;

(2) "Contraceptive":

(A) Means any device, medication, biological product, or procedure that is intended for use in the prevention of pregnancy, whether specifically intended to prevent pregnancy or for other health needs, and that is legally marketed under the federal Food, Drug, and Cosmetic Act (21 U.S.C. § 301 et seq.); and

(B) Does not mean an abortion-inducing drug, as defined in § 63-6-1102;

(3) "Fertility treatment" includes:

(A) The preservation of human oocytes, sperm, or embryos for later reproductive use;

(B) Artificial insemination, including intravaginal insemination, intracervical insemination, and intrauterine insemination;

(C) Assisted reproductive technology, including in vitro fertilization and other treatments or procedures in which reproductive genetic material, such as oocytes, sperm, fertilized eggs, and embryos are handled;

(D) Genetic testing of embryos;

(E) Medication prescribed or obtained over-the-counter, as indicated for fertility;

(F) Gamete donation; and

(G) Other information, referrals, treatments, procedures, medications, laboratory testing, technologies, or services relating to fertility;

(4) "Healthcare provider" means an individual who is licensed, certified, registered, or otherwise authorized or permitted by the laws of this state to administer health care in the ordinary course of business in the practicing of a profession; and

(5) "Person" means an individual human being.

(b) The laws of this state do not prohibit:

(1) Fertility treatment or contraception; or

(2) The performance, receipt, or use of fertility treatment or contraceptives in this state.

(c) Notwithstanding another law to the contrary, it is the official policy of this state that human life begins at fertilization, as defined in § 39-15-213. This state has a compelling interest in the protection of the life of an unborn child, as defined in § 39-15-213, at every stage from fertilization until birth.

(d) This section does not create an entitlement to fertility treatment or contraception, or to coverage of or funding or reimbursement for fertility treatment or contraception.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.